

25STCV14892 25STCV14892

County: los-angeles

Division: Civil Law and Motion

Department: 11

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Case Number: 25STCV14892 Hearing Date: August 5, 2026 Dept: 11

Gonzales

(25STCV14892)

Tentative Ruling Re:

Motion to Compel Arbitration

Date: 8/5/26

Time: 11:00 am

Moving

Party: Rowland Air, Inc.

("Rowland Air" or "Defendant")

Opposing

Party: Robert Gonzales

("Plaintiff")

Department: 11

Judge: Bruce G. Iwasaki

TENTATIVE RULING

Defendant's motion to compel arbitration under the
Rowland Air agreement is denied.

BACKGROUND

Plaintiff used to work for Rowland Air as an installer. He alleges that Rowland Air subjected him and other current and former employees to numerous wage-and-hour violations.

In April 2023, Plaintiff e-signed two agreements called the Rowland Air, Inc. Arbitration Agreement (“Roland Air Agreement”) and the Rowland Air, Inc. Confidential Information Agreement (“CIA”). (See Hoover Decl., ¶¶ 13-14, 18, Exs. A, B; see also Gonzales Decl., ¶¶ 2-3.)

In September 2023, he e-signed two new agreements called the Mutual Agreement to Arbitrate Disputes (“MAAD”) and the Business Protection Agreement (“BPA”). (See Hoover Decl., ¶ 19, Ex. C; see also Gonzales Decl., ¶ 4.)

Now, Rowland Air moves to compel arbitration pursuant to the Rowland Air Agreement. (See Motion, pp. 6-7 [arguing that (1) the BPA and the MAAD do not supersede the Rowland Air Agreement, and (2) the Rowland Air Agreement should not be read as a single, integrated agreement with the BPA and the MAAD]; see also Reply, pp. 1-3 [rearguing against BPA or MAAD superseding Rowland Air Agreement]; *id.* at pp. 1, 4 [inappropriately arguing for the first time in reply that, even assuming the MAAD and the BPA supersede, Plaintiff still must arbitrate under the MAAD].)

DISCUSSION

Preliminary Matter

Plaintiff devotes multiple pages of the opposition brief to challenging the MAAD and the BPA on unconscionability grounds. (See Opposition, pp. 9-15.)

Given that Defendant is moving under the Rowland Air Agreement, the challenge is, for present purposes, moot.

Existence and Consent

“[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and . . . whether it is enforceable.” (Rosenthal v. Great Western Financial Securities Corp. (1996) 14 Cal.4th 394, 413.) “[T]he threshold question . . . is whether there is an agreement to arbitrate.” (Cruise v. Kroger Co. (2015) 233 Cal.App.4th 390, 396, emphasis in original.)

Determining whether an arbitration agreement was formed is a three-step process. “First, the moving party bears the burden of producing ‘prima facie evidence of a written agreement to arbitrate the controversy.’” (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.’” (Ibid.) In the alternative, “the moving party can meet its burden by setting forth the agreement’s provisions in the motion.” (Ibid.)

“If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” (Ibid.) “The opposing party can do this in several ways.” (Ibid.) “For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (Ibid.)

“If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties.” (Ibid.) “The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (Id. at 165-166.)

Defendant passes the first step. A copy of the entire Rowland Air Agreement is physically included with the moving papers. (See Hoover Decl., Ex. A; see also Gamboa, supra, 72 Cal.App.5th at 165.)

Plaintiff admits that he e-signed the Rowland Air Agreement and the CIA. (See Gonzales Decl., ¶¶ 2-3.)

Nevertheless, for the second and third steps, Plaintiff asserts that the motion to compel should be denied because the BPA and the MAAD supersede and conflict with the Rowland Air Agreement. (See Opposition, pp. 3-6.)

Defendant disagrees. Defendant contends the MAAD and the BPA do not contain integration clauses, statements stating that they supersede prior agreements, or contradicting terms. (See Motion, pp. 6-8; see also Reply, pp. 1-4.) In making these arguments Defendant cites Code of Civil Procedure section 1856 and *Grey v. American Management Services* (2012) 204 Cal.App.4th 803 (*Grey*). (See Motion, p. 6.) Plaintiff cites *Mountain Air Enterprises, LLC v. Sundowner Towers, LLC* (2017) 3 Cal.5th 744 (“*Mountain Air*”). (See Opposition, pp. 3-4.)

Section 1856 codifies the parol evidence rule. Rowland Air’s reliance on it is misplaced. The statute bars use of either a “prior agreement” or a “contemporaneous oral agreement” to contradict the terms of an integrated contract. (Cal. Code Civ. Proc. § 1856, subd. (a), emphasis added.) By contrast, the MAAD and the BPA postdate the Rowland Air Agreement, and the Rowland Air Agreement lacks integration wording (Defendant cites none). (See Hoover Decl., Ex. A; see also Motion, pp. 5-8.)

Indeed, a proper application of section 1856 would arguably prevent the Court from considering the Rowland Air Agreement to see whether it contradicts the MAAD and the BPA.

For example, in *Grey*, the issue was whether a new employment contract superseded an earlier arbitration agreement. The plaintiff signed the arbitration agreement when he applied to work for the defendant. Later, after he accepted the job, he signed an employment contract that included an integration clause. (See *Grey*, supra, 204 Cal.App.4th at 807 [“This Agreement is the entire agreement between the parties in connection with Employee’s employment with [defendant], and supersedes all prior and contemporaneous

discussions and understandings.”].)

“Construing the clause as a whole,” the Court of Appeal held that the employment contract did supersede the arbitration agreement because the parties intended the employment contract to be “the final expression of [their] agreement with respect to [the plaintiff’s] employment[.]” (Ibid.; see also id. at 807-808 [“Because the contract says it is the entire agreement, common sense dictates that it supersedes other prior agreements related to Grey’s employment. An ‘understanding’ can mean ‘an agreement.’ (Webster’s Third New Internat. Dict. 2002) p. 2490.) Since the clause then says it supersedes all prior understandings, when read in the context of the clause as a whole, ‘understandings’ means all prior agreements. We find the clause’s express language that it is the ‘entire agreement’ and supersedes all prior ‘understandings’ to mean that the parties intended the contract to be the final and exclusive embodiment of their agreement.”].)

Grey, therefore, does not support Defendant’s claim that the earlier agreement governs.

As noted, Plaintiff relies on Mountain Air.

Although the case did not involve an arbitration agreement, the Supreme Court’s opinion quotes an important rule of contract interpretation: “Whether [a] new contract was intended as a substitute for the old may be inferred where the terms of the new contract differ widely from those of the old, especially where the two are entirely inconsistent and cannot be operative at the same time.” (Mountain Air, supra, 3 Cal.5th at 760.)

This principle demonstrates that, in contrast to Defendant’s argument, the earlier Rowland Air Agreement it seeks to enforce, and the later MAAD agreement, conflict with each other. Neither the Rowland Air Agreement nor the MAAD has an integration clause or a sentence providing that the agreement supersedes previous agreements.

But the MAAD states:

It is the intent of Employee and the Employer that this Agreement will govern the resolution of all disputes, claims, and any other matters in question arising out of or relating to the Parties’ employment relationship or termination of that relationship. The Parties shall resolve all disputes arising out of or relating to the Parties’ employment relationship or

termination of that relationship in accordance with the provisions of this Agreement

(Hoover Decl., Ex. C, p. 1, emphasis added.) The plain language shows clear intent for the MAAD to be the operative arbitration agreement.

Moreover, inconsistencies between the MAAD and the earlier agreement support this conclusion. For example:

* The Rowland Air Agreement requires the parties to utilize state arbitration procedures or the JAMS rules (see id. at Ex. A, pp. 69-70); the MAAD requires the parties to use the American Arbitration Association (“AAA”) and the AAA rules. (See id. at Ex. C, p. 1.)

* The Rowland Air Agreement does not expressly allow employees to opt out (see id. at Ex. A, p. 70); the MAAD does. (See id. at Ex. C, p. 3; see also Opposition, p. 4 [listing other potential differences].)

Together, these factors create a reasonable inference that the parties meant for the MAAD to supersede the Rowland Air Agreement.

Defendant moved to enforce the Rowland Air Agreement. That agreement was superseded.

The motion to compel arbitration under the Rowland Air Agreement is denied.

Unconscionability and
Enforcement

Plaintiff claims the Rowland Air Agreement and the CIA are unconscionable. (See Opposition, pp. 6-9.)

In light of the preceding analysis, the Court need not decide the unconscionability issue.